JOSHUA MOYO

Versus

DUMISANI NDLOVU

AND

SANKAZY MINING CO. SYNDICATE

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 3 AND 10 DECEMBER 2025

Urgent Application- virtual

T Tavengwa, for the applicant
Mr Solanni, for first and second respondents

NDUNA J: The law requires orderliness in its execution. The applicant alleges that it was in peaceful and undisturbed occupation of Bolder Mining claim. Through the use of mighty, the Respondents are alleged to have launched an attack on the applicant thus evicting him from his occupation of the said mine. The applicant consequently approached the court seeking protection from the said evictions. He needs to be restored to his prior occupation of the mining claims and protection from being unlawfully evicted from the mine. He has approached the court for an order in the following terms: -

1. *Respondents and everyone claiming occupation through them be and hereby be ordered to restore possession or occupation of Consol B Mining Claim, Registration Number 37774 or Great Boulder 1, Registration 10508BM to the applicant and its employees immediately upon service of this order*
2. *The Sheriff of the High Court with the assistance of the Zimbabwe Republic Police be and hereby is ordered to evict the Respondents and anyone claiming occupation through them from Consol B Mining Claim or Great Boulder 1 Registration 10508BM and thereafter give vacant possession of the property to the applicant*

3. *The respondents be and hereby interdicted from entering complainant's mining claim, Registration Number 37774 or Great Boulder 1 Registration Number 10508BM without the consent of the applicant or valid order from the High Court*
4. *Respondent be and are hereby ordered to pay cost of suit on client and attorney scale*

The respondent does not seem to deny that they have evicted the applicant from the mine claim. They instead, allege that they are acting in terms of a lawful order issued by the Director of Mines for the eviction of the applicant from the said claim.

The law is very clear in such situations.

The requirements to be proven by an applicant relying on the *mandament van spolie* are well-known. All that the despoiled person needs to prove is that—

(a) he/she was in peaceful and undisturbed possession of the property; and

(b) he/she was deprived of possession unlawfully, ie forcibly or wrongfully against his consent.

The remedy was discussed in *Ngqukumba v Minister of Safety and Security and Others 2014 (7) BCLR 788 (CC) para 10* the Constitutional Court of South Africa held that:

> "The essence of the *mandament van spolie* is the restoration before all else of unlawfully deprived possession to the possessor. It finds expression in the *maxim spoliatus ante omnia restituendus est* (the despoiled person must be restored to possession before all else). The spoliation order is meant to prevent the taking of possession otherwise than in accordance with the law. Its underlying philosophy is that no one should resort to self-help to obtain or regain possession. The main purpose of the *mandament van spolie* is to preserve public order by restraining persons from taking the law into their own hands and by inducing them to follow due process."

The *mandament van spolie* is an extraordinary and robust remedy. Few defences may be raised and once an applicant has discharged the onus to prove the aforesaid requisites and none of the recognized defences have been raised with success, the court is bound to grant relief, notwithstanding the merits of the dispute between the parties. It is also a speedy remedy and restoration should take place immediately.

In Burger v *Van Rooyen 1961 (1) SA 159 (O) at p 161G* it was stated that this principle does entail that each and every spoliation application shall automatically be deemed urgent, or even extremely urgent, requiring a flouting of the Rules of Court.

The same principles were held in *Diocese of Harare* v *Church of the Province of Central Africa and Retired Bishop Sebastian Bakare HH06-08* it was held that: -

> The requirements for obtaining an order mandament van spolie (spoliation order) are met when:
>
> (a) A person has been deprived unlawfully of the whole or part of his possession of movable or immovable corporeal: and also
>
> (b) A person has been deprived unlawfully of his quasi-possession of a movable or immovable incorporeal.

The law exists to prevent individuals from taking the law into their own hands and administering instant justice. The respondent alleges that they were acting pursuant to an order issued by the Provincial Mining Director, which purportedly authorised the eviction of the applicant from the disputed mine. However, where such an order is executed without the involvement of the Messenger of Court or the Deputy Sheriff, the act amounts to unlawful spoliation. Court orders must be enforced in an orderly and lawful manner. In the case of an eviction, only the Messenger of Court or the Deputy Sheriff is legally empowered to carry it out. These officers are enjoined to satisfy themselves that the order is valid and executable, and, if so satisfied, to lawfully give effect to it

In the matter before the Court, there was no involvement of the Messenger of Court or the Deputy Sheriff. It follows that the execution of the Mining Director's order was carried out unlawfully. This is therefore a case in which the relief sought by the applicant must be granted. The preliminary points raised by the respondent cannot be upheld, as they would defeat the very purpose of a spoliation remedy. The issues for determination are simple: whether the applicant was in peaceful and undisturbed possession of the mine in question, and whether he was thereafter unlawfully dispossessed. Once these questions are answered in the affirmative, as this Court hereby does, the application must be granted, and the applicant restored to peaceful and undisturbed possession of the mine. The question of costs ought to follow the cause as

prayed for. People should learn to observe the law. In cases of this nature, ordering costs as claimed is appropriate. Costs are therefore ordered on a higher scale.

ORDER

It is accordingly ordered as follows:

1. Respondents and everyone claiming occupation through them be and hereby be ordered to restore possession or occupation of Consol B Mining Claim, Registration Number 37774 or Great Boulder 1, Registration 10508BM to the applicant and its employees immediately upon service of this order
2. The Sheriff of the High Court with the assistance of the Zimbabwe Republic Police be and hereby is ordered to evict the Respondents and anyone claiming occupation through them from Consol B Mining Claim or Great Boulder 1 Registration 10508BM and thereafter give vacant possession of the property to the applicant
3. The respondents be and hereby interdicted from entering complainant's mining claim, Registration Number 37774 or Great Boulder 1 Registration Number 10508BM without the consent of the applicant or valid order from the High Court
4. Respondent be and are hereby ordered to pay cost of suit on client and attorney scale

Mutuso, Taruvunga & Mhiribidi, applicant's legal practitioners
Shenje and Company, 1st and 2nd respondents' legal practitioners